

RFE Response Toolkit

EB2-NIW & EB1A: Endeavor • 3 Prongs • GenAI • LaTeX

Strategic RFE Response System

June 7, 2026

Master the Art of RFE Response: EB2-NIW & EB1A

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What You Will Learn

- How to understand and respond to USCIS Requests for Evidence (RFEs)
- The 3 Prongs of EB2-NIW under *Matter of Dhanasar*
- Using Generative AI (DeepSeek, ChatGPT, Gemini, Perplexity) for RFE responses
- LaTeX templates for professional 400+ page applications
- Expert opinion letters that address specific RFE concerns
- How to prove "Critical Role" for EB1A
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- [Analyzing the actual RFE denial notice structure](#)

What is an RFE?

Request for Evidence - Definition

Answer: An RFE is a formal request from USCIS asking for additional documentation or clarification to determine eligibility. **Key Facts:**

- Issued when evidence is missing, insufficient, or unclear
- Response time: typically 30-87 days
- NOT a denial - your case is still alive
- Opportunity to strengthen your petition

Do NOT ignore an RFE. Failure to respond = automatic denial.

RFE vs. NOID vs. Denial

Understanding USCIS Actions

Action	Meaning	Response Window
RFE	Core eligibility gaps found; case still active	30-87 days
NOID	Intent to deny; serious defects	30-33 days
Denial	Case closed; no further evidence accepted	30-33 days for appeal

RFE is the best scenario - you have time to fix the issues.

The RFE Notice - Key Information (REDACTED)

Receipt Details from RFE Notice

Receipt Number: [RECEIPT NUMBER] **Petitioner:** [PETITIONER NAME] **A-Number:**

[A-NUMBER] **Priority Date:** [DATE] **Response Deadline:** [DATE] **Officer:** [OFFICER NAME]

Service Center: Texas Service Center (TSC)

Missing Information on Form I-140

CRITICAL: Form I-140 Deficiencies

USCIS identified missing information on Form I-140: **Part 4 - Processing Information:**

MISSING **Part 6 - Basic Information About the Proposed Employment:** MISSING **Specific**

fields missing:

- Job Title
- Applicable SOC Code
- Nontechnical Job Description

ACTION ITEM: Immediately complete missing sections and resubmit with RFE response.

Understanding the 3 Prongs of Dhanasar

The Dhanasar Framework (26 I&N Dec. 884)

Prong 1: Proposed endeavor has both substantial merit and national importance **Prong 2:** Petitioner is well-positioned to advance the proposed endeavor **Prong 3:** On balance, waiving job offer and labor certification benefits the U.S. **The RFE may identify deficiencies in ANY of these three prongs.**

RFE Prong 1 Deficiency: No Clear Endeavor Description

Common USCIS Finding - Substantial Merit

"The self-petitioner did not specifically state what position that he intends to propose to do in the United States. A self-petitioner should offer details not only as to what the occupation normally involves, but what types of work the person proposes to undertake specifically within that occupation."

Problem: Endeavor is vague - described as generic occupation rather than specific proposed work. **Solution:** Submit a detailed, specific endeavor description with:

- Specific projects and goals
- Timeline with milestones
- Quantifiable metrics
- How this differs from normal job duties

How to Fix Prong 1 - Substantial Merit

Required Evidence per RFE

USCIS specifically requests:

- A detailed description of the proposed endeavor and why it is of substantial merit
- Documentary evidence that supports the petitioner's statements

Substantial merit can be shown in:

- Business, entrepreneurialism, science, technology, culture, health, education
- Potential to create significant economic impact
- Endeavor related to research or pursuit of knowledge
- Potential to create significant cultural impact

RFE Prong 1 Deficiency: National Importance Not Established

Common USCIS Finding - National Importance

"The record does not show the self-petitioner has demonstrated a proposed endeavor has broader implications and will operate on such a large scale to impact the U.S. economy. The evidence does not show a proposed endeavor that will increase productivity and profitability of U.S. businesses..."

Problem: Officer focused on generic industry importance, not your specific endeavor. **Key**

Legal Standard:

- The relevant question is NOT the importance of the field/industry
- Focus is on the SPECIFIC endeavor the foreign national proposes to undertake
- Endeavor may have national importance even if impact is primarily in one geographic area

How to Fix Prong 1 - National Importance

Evidence to Demonstrate National Importance

Submit evidence showing the proposed endeavor:

- Has national or even global implications within a particular field
- Has significant potential to employ U.S. workers
- Has other substantial positive economic effects, particularly in economically depressed areas
- Will broadly enhance societal welfare or cultural/artistic enrichment
- Impacts a matter that a government entity has described as having national importance

Examples of strong evidence:

- .gov citations (Federal Reserve, Science.gov, ERIC)
- Letters from government entities demonstrating interest
- Documentation showing work is used across state lines

RFE Prong 2 Deficiency: Not Well-Positioned

Common USCIS Finding - Well-Positioned

"Not every individual who possesses the necessary educational and professional credentials, skills, and who worked in the field will be found to be well positioned to advance the proposed endeavor. The self-petitioner must go beyond showing expertise in a particular field."

Problem: Officer concluded activities are "inherent to the occupation" - normal job duties.

Solution: Demonstrate your role goes beyond normal expectations:

- Leading, critical, or indispensable role in the endeavor
- Progress toward achieving the proposed endeavor
- Interest from potential customers, users, or investors

How to Fix Prong 2 - Well-Positioned

Evidence to Demonstrate Well-Positioned

Education, skills, knowledge, and record of success:

- Degrees, certificates, licenses in the field
- Patents, trademarks, copyrights owned by petitioner
- Letters from experts describing past achievements
- Published articles and media reports
- Strong citation history documentation
- Evidence work has influenced the field

Model or plan for future activities:

- Detailed plan describing how work will continue in the U.S.
- Business model when appropriate
- Correspondence from prospective employers/clients
- Documentation reflecting feasible plans for financial support

RFE Prong 3 Deficiency: Balancing Test Not Met

Common USCIS Finding - Balancing Test

"The letters of support lack specific, detailed information to show, on balance, it would be beneficial to the United States to waive the requirements of a job offer, and thus of a labor certification."

Problem: USCIS not persuaded that waiver benefits outweigh labor certification process.

Factors USCIS considers:

- Whether it would be impractical to secure a job offer or obtain labor certification
- Whether U.S. would still benefit even if other qualified U.S. workers are available
- Whether national interest is sufficiently urgent to warrant forgoing labor certification
- Whether endeavor may lead to potential creation of jobs
- Whether self-employed in manner that does not adversely affect U.S. workers

How to Fix Prong 3 - Balancing Test

Evidence to Demonstrate Balancing Test

Submit evidence showing:

- Knowledge or skills are not easily articulated in a labor certification
- Benefits to U.S. outweigh those inherent in labor certification process
- Letters from interested U.S. government agencies or quasi-governmental entities
- Explanation of particular urgency
- How U.S. would benefit even if other U.S. workers are available
- Why proposed endeavor stands to impact or reduce national shortage

The labor certification process is designed to protect domestic labor supply. Your evidence must show why waiving this protection benefits the U.S. despite that purpose.

Expert Opinion Letters - What USCIS Looks For

What USCIS Said About Expert Letters

"The letters of support lack specific, detailed information to show, on balance, it would be beneficial to the United States to waive the requirements of a job offer... The authors of the letters failed to provide any information how the self-petitioner's work influenced the field or industry and went beyond the self-petitioner's organization."

Problem: Generic letters that don't address specific Dhanasar prongs. **Solution:** Each expert letter must:

- Address the SPECIFIC proposed endeavor
- Explain how work influences the field BEYOND the employer
- Discuss national importance, not just individual qualifications
- Include expert's credentials (CV attached)

Expert Letter Structure for RFE Response

Template for RFE-Focused Expert Letter

Each expert letter should include:

- 1 **Expert qualifications:** Credentials, experience, publications (resume attached)
- 2 **Relationship to petitioner:** How they know your work (independent review)
- 3 **Understanding of the endeavor:** Restate your proposed work
- 4 **Prong 1 confirmation:** Why the endeavor has national importance (specific, not generic)
- 5 **Prong 2 confirmation:** Why you are well-positioned (beyond normal job duties)
- 6 **Prong 3 confirmation:** Why labor certification waiver benefits the U.S.
- 7 **Specific RFE response:** Directly address officer's concerns
- 8 **Conclusion:** Statement that you meet Dhanasar standards

Generic letters are ignored. Letters must address specific RFE language.

Detailed 5-Year Plan - Demonstrating Well-Positioned

Why a 5-Year Plan is Critical for RFE Response

Prong 2 requires showing:

- A model or plan for future activities
- How you intend to continue your work in the United States
- Progress toward achieving the proposed endeavor
- Feasible plans for financial and operational support

Without a detailed plan, USCIS cannot conclude you are well-positioned to advance the endeavor.

5-Year Plan Template - Year by Year

Year	Key Activities & Milestones	Quantifiable Metric
Year 1	Establish research infrastructure; finalize pending publications; secure collaborations	3-5 papers submitted; 2 expert collaborations
Year 2	Expand research scope; present at major conferences; begin workforce training	5-7 papers published; 3 conference presentations
Year 3	Develop open access educational resources;	2-3 courses

5-Year Plan - Research Component

Research Timeline & Publication Goals

Year 1: Foundation

- Complete and submit pending manuscripts (3-5 papers)
- Establish research collaborations with U.S. institutions
- Secure ORCID and Google Scholar profiles for tracking

Year 2: Expansion

- Publish in peer-reviewed journals (Scopus/WoS indexed)
- Present at U.S.-based conferences
- Build citation momentum on existing work

Year 3-5: Sustained Impact

- Maintain publication pipeline (2-3 papers per year)
- Achieve cumulative 500+ citations on Google Scholar
- Serve as peer reviewer for 5+ journals annually
- Mentor junior researchers

Each milestone is **VERIFIABLE** through Google Scholar, ORCID, and journal databases.

5-Year Plan - Workforce Training & Education

Open Access Education Timeline

Year 1-2: Content Development

- Develop curriculum for AI/finance/cybersecurity training
- Create free online courses (Udemy, YouTube, or institutional platforms)
- Target workforce segments: veterans, career changers, professionals

Year 3-4: Launch & Scale

- Launch courses with measurable enrollment tracking
- Target: 1,000+ students in Year 3; 5,000+ in Year 4
- Collect geographic distribution data (nationwide reach)

Year 5: Sustained Impact

- Achieve 10,000+ cumulative student enrollments
- Develop advanced/specialized course offerings
- Partner with workforce development organizations

Quantifiable metrics: enrollment numbers, completion rates, student feedback.

5-Year Plan - Policy & Regulatory Engagement

Policy Impact Timeline

Ongoing (Years 1-5):

- Monitor Regulations.gov for relevant RFIs/NPRMs
- Submit research-backed policy comments (2-3 per year)
- Track citations of comments in final rules

Year 2-3: Government Recognition Goals

- Seek citation by Federal Reserve, Science.gov, or ERIC
- Engage with professional organizations for endorsements
- Build portfolio of .gov citations

Year 4-5: Thought Leadership

- Participate in industry working groups
- Contribute to policy white papers
- Establish reputation as subject matter expert

Policy engagement directly supports Prong 1 (national importance) and Prong 3 (balancing test).

5-Year Plan - Industry Collaboration & Partnerships

Building Industry Relationships

Year 1:

- Identify potential industry partners (banks, tech companies, training organizations)
- Leverage existing professional network

Year 2-3:

- Formalize 2-3 collaboration agreements
- Provide consulting or advisory services
- Document industry adoption of methodologies

Year 4-5:

- Expand to 5+ industry partnerships
- Secure letters of support for immigration purposes
- Demonstrate real-world impact of research

Industry testimonials and EVL (Employer Verification Letters) are powerful Prong 3 evidence.

5-Year Plan - Quantifiable Metrics Summary

Measurable Outcomes by Year 5

Category	Target Metric
Peer-reviewed publications	15-20 total papers
Google Scholar citations	500+
h-index	10+
Peer review credits	20+ reviews (WoS/ORCID)
Open access students trained	10,000+
Policy comments submitted	10-15
.gov citations	3-5 (Federal Reserve, Science.gov, ERIC)
Industry partnerships	3-5
Conference presentations	5-7

How to Present 5-Year Plan in RFE Response

Sample Language for RFE Response

"Petitioner submits the following 5-Year Plan demonstrating he is well-positioned to advance the proposed endeavor:

Year 1: *Complete pending publications (Exhibits A-C). Establish research collaborations with [INSTITUTIONS].*

Year 2: *Publish 5-7 peer-reviewed papers in Scopus/WoS journals (Exhibit D). Present at [CONFERENCES].*

Year 3: *Launch open access workforce training courses targeting U.S. veterans and career changers. Target 1,000+ enrollments.*

Year 4: *Scale training to 5,000+ students nationwide. Expand industry partnerships.*

Year 5: *Achieve 10,000+ cumulative students, 500+ citations, and sustained research output.*

Each milestone is VERIFIABLE through: - Publication records (Google Scholar, ORCID, Scopus) - Enrollment dashboards (Udemy/institutional platforms) - Citation tracking (Google Scholar, Semantic Scholar) - Policy comments (Regulations.gov docket numbers)"

Connecting 5-Year Plan to Katigbak Strategy

Why This Plan is NOT a Post-Filing Achievement

What USCIS may incorrectly argue:

"The 5-year plan describes FUTURE work, so it cannot support eligibility at filing."

Your counter-argument:

"The 5-year plan demonstrates that the Petitioner HAD a concrete, detailed plan at the time of filing - not that future achievements create new eligibility. Under Matter of Dhanasar, the national importance inquiry is PROSPECTIVE (focused on future impact). A detailed plan showing HOW the endeavor will be executed is precisely what Prong 2 requires."

Supporting evidence:

- Include timestamps showing plan was created BEFORE filing
- Reference specific sections of original petition that outlined this plan
- Show that Year 1 activities are already underway (pre-filing)

A detailed 5-year plan with verifiable metrics is STRONG evidence for Prong 2.

5-Year Plan - Evidence Checklist for RFE

Before Submitting, Ensure You Have:

- ☐ Written 5-year plan with annual milestones (1-2 pages)
- ☐ Specific, quantifiable metrics for each year
- ☐ Timeline showing plan was created BEFORE filing date
- ☐ Reference to original petition where plan was described
- ☐ Evidence that Year 1 activities are already in progress
- ☐ Connection between plan and each Dhanasar prong
- ☐ Supporting documentation for each milestone type:
 - Publications - journal submission receipts, DOIs
 - Training - platform screenshots, enrollment data
 - Policy - Regulations.gov submission confirmations
 - Industry - collaboration letters, EVLs

A well-documented 5-year plan is often the DIFFERENCE between approval and denial.

Handling RFE Claims That Endeavor "Changed"

The Problem - USCIS May Claim Endeavor Changed

Common RFE Trap:

"The petitioner's RFE response describes a different endeavor than what was originally proposed. The endeavor has changed, and USCIS cannot evaluate eligibility based on a new endeavor."

USCIS uses this argument to deny without reviewing the merits of your response. The Truth:

- The endeavor is the SAME as originally proposed
- Your RFE response provides GREATER DETAIL and CLARIFICATION
- Greater detail does NOT equal a change in endeavor
- Adding specificity, timelines, and metrics is CLARIFICATION, not change

Legal Argument: Clarification vs. Change

What the Law Says

Key Principle: Providing additional detail about an existing endeavor is NOT a change.

Examples:

NOT a Change (Permissible)	Actual Change (Not Permissible)
Adding specific project names	Switching to completely different field
Including timeline with milestones	Changing from research to business
Naming specific collaborators	Changing target beneficiaries
Quantifying expected outcomes	Abandoning original endeavor entirely
Clarifying methods and approaches	Proposing entirely new activities

The

original petition said "I will do research on AI in finance." The RFE response adds "I will publish 5 papers, train 10,000 students, and collaborate with X institution." This is CLARIFICATION, not change.

How to Structure RFE Response to Avoid "Change" Argument

Strategy: Explicitly Reference Original Petition

In your RFE response, include language like:

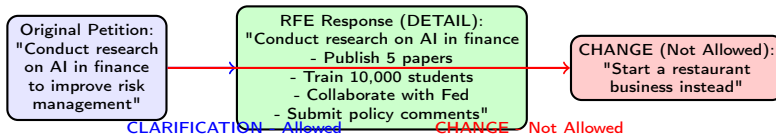
"This response does NOT propose a new or different endeavor. Rather, it provides the GREATER DETAIL and SPECIFICITY that the original RFE requested.

As stated in the original petition filed on [DATE], Petitioner proposed to [QUOTE ORIGINAL ENDEAVOR LANGUAGE].

The tables, timelines, and metrics below simply ELABORATE on the same endeavor by: - Adding specific milestones to the existing timeline - Quantifying the expected outcomes originally described - Naming specific collaborators and institutions - Providing verifiable metrics for the originally stated goals

The core endeavor remains IDENTICAL to what was originally proposed. No new activities have been added. Only the level of detail has increased."

Visual: Endeavor Detail vs. Endeavor Change



Pre-Emptive Language to Block "Change" Argument

Include This Language in Your RFE Response

At the beginning of your response:

"Petitioner respectfully submits that this response in no way alters or changes the proposed endeavor as originally described in the Form I-140 petition filed on [DATE]. The original petition stated: [QUOTE].

The additional details, timelines, metrics, and supporting documentation provided herein serve only to ELABORATE, CLARIFY, and provide EVIDENCE in support of the SAME endeavor. USCIS's RFE specifically requested greater specificity regarding the proposed endeavor. This response provides that specificity.

Any suggestion that providing greater detail constitutes a change in endeavor would penalize petitioners for responding to RFEs as requested, which cannot be the intent of the regulations."

This language creates a record that you are NOT changing your endeavor.

Case Law Support - Clarification is Permissible

Matter of Katigbak - Key Distinction

What Katigbak prohibits:

- Brand new evidence of achievements that did NOT exist at filing
- Fundamentally different endeavor than originally proposed

What Katigbak does NOT prohibit:

- Clarification of facts that existed at the time of filing
- Additional detail about the SAME endeavor
- Evidence that corroborates the originally stated goals

Adding a 5-year plan with milestones is **CLARIFICATION** of the existing endeavor, not creation of a new one. **See also:**

- *Matter of Chawathe* - preponderance of evidence standard
- *Matter of Dhanasar* - prospective impact inquiry

How USCIS Might Argue "Change" - And Your Rebuttal

Potential USCIS Argument #1

USCIS: "The RFE response describes training programs not mentioned in the original petition."

Rebuttal: "The original petition stated Petitioner would 'enhance workforce skills.' The RFE response specifies that this will be accomplished through open access courses. This is SPECIFICATION, not addition."

Potential USCIS Argument #2

USCIS: "The RFE response includes collaboration with specific institutions not named before."

Rebuttal: "The original petition stated Petitioner would 'collaborate with industry partners.'"

The RFE response names specific partners as examples of the TYPE of collaboration contemplated. The endeavor remains unchanged."

Potential USCIS Argument #3

USCIS: "The RFE response adds quantifiable metrics that were not in the original." **Rebuttal:**

"The RFE specifically requested 'quantifiable metrics' and 'evidence of prospective impact.' Providing what was requested is not a change in endeavor - it is compliance with the RFE."

Practical Tips to Avoid "Change" Argument

Do This - Safe Approach

- ✓ Quote the original endeavor verbatim at the start of your response
- ✓ Use phrases like "to clarify," "to elaborate," "to provide specificity"
- ✓ Explicitly state "This is the SAME endeavor as originally proposed"
- ✓ Organize response as elaboration of original categories
- ✓ Keep the core description identical; add details as subsections

Do NOT Do This - Risky Approach

- ✗ Rewrite the endeavor description in completely new language
- ✗ Add entirely new categories of activity not implied in original
- ✗ Remove or abandon elements of the original endeavor
- ✗ Use phrases like "I now propose to..."
- ✗ Submit response without referencing the original petition language

Sample Side-by-Side - Original vs. RFE Response

Original Petition Endeavor Description

"I propose to continue my research on AI-driven financial risk modeling, focusing on developing open-source tools for community banks and credit unions to detect fraud and ensure regulatory compliance. This endeavor will enhance financial stability across the U.S. banking system."

RFE Response (SAME Endeavor, MORE Detail)

"Petitioner reaffirms the SAME proposed endeavor as originally described: research on AI-driven financial risk modeling for community banks and credit unions. To provide the specificity requested in the RFE, Petitioner adds: - A 5-year publication plan targeting 5-7 papers in Scopus/WoS journals - A workforce training initiative targeting 10,000+ community bank employees - Collaboration with [INSTITUTION] for research validation - Policy comments submitted to [AGENCY] on relevant regulations All of these activities are DIRECTLY DERIVED from the original endeavor description and represent ELABORATION, not change."

Final Checklist - Avoiding "Endeavor Changed" RFE Trap

Before Submitting RFE Response, Verify:

- ☐ Original endeavor quoted verbatim in the response
- ☐ Explicit statement that endeavor has NOT changed
- ☐ New details are clearly linked to original categories
- ☐ No categories of activity removed from original
- ☐ No completely new categories added (only specified existing ones)
- ☐ Response uses language of CLARIFICATION, not CHANGE
- ☐ Original petition referenced throughout (page numbers, exhibit references)
- ☐ Legal citations ready to counter "change" argument (Katigbak, Chawathe)

The goal: Make it IMPOSSIBLE for USCIS to claim the endeavor changed without misrepresenting your response. Remember: Greater detail = Clarification. Clarification = Permissible. Change = Not permissible. Your response must be the former.

The Pre-Filing Strategy: Work Done Before Filing

Key Argument: Pending Publications and Work in Progress

The Problem with RFEs:

- USCIS often demands evidence of "already achieved" impact
- But the NIW standard is PROSPECTIVE (*Dhanasar*)
- Officers confuse EB-1A (past achievements) with EB2-NIW (future potential)

The Strategic Answer:

- Show that work was **ALREADY IN PROGRESS** before filing
- Pending publications count as "work done" not "new achievements"
- The research was ongoing - not started after filing

"The Work Was Already Told" - Documentation Strategy

Proving Pre-Filing Work Existed

What you need to show:

- The original petition mentioned the research direction
- Draft manuscripts existed BEFORE the filing date
- Preprints were submitted to preprint servers before filing
- Research collaborations were established before filing
- Data collection was completed before filing

How to prove it:

- Email timestamps showing manuscript drafts
- Submission receipts from preprint servers (dated before filing)
- Version control history showing pre-filing work
- Expert letters confirming the work was underway

If you can prove work was ongoing, it is NOT a post-filing achievement.

Pending Publications Are NOT Post-Filing Achievements

The Key Distinction Under Matter of Katigbak

Katigbak bars:

- New papers published AFTER the filing date
- New awards received AFTER the filing date
- New citations earned AFTER the filing date

Katigbak does NOT bar:

- Papers that were SUBMITTED before filing (even if published later)
- Research that was IN PROGRESS at time of filing
- Work that was "already told" in the original petition

Strategic argument:

"The pending publications represent the natural fruition of work that was already described, in progress, and ongoing at the time of filing. They do not create new eligibility; they merely confirm the viability and execution of the originally proposed endeavor."

Using .gov Indexing as RFE Evidence

Science.gov Indexing - Federal Recognition

What is Science.gov?

- Official U.S. government portal for scientific information
- Searches 60+ federal databases
- Indexing means federal agencies found your work valuable

Why this matters for RFE:

- Direct .gov domain evidence of national importance
- Verifiable by USCIS through science.gov
- Shows your research is used by U.S. government scientists
- Counts as "professional recognition" for EB1A

Having your papers indexed on Science.gov is objective proof that federal agencies consider your work valuable.

Finance and Economics Discussion Series (FEDS)

What is FEDS?

- Official publication of the Federal Reserve Board
- Peer-reviewed research on U.S. financial and economic policy
- Widely used by policymakers, researchers, and financial institutions

Why this is powerful RFE evidence:

- Direct citation by the U.S. central bank
- Proves your research influences federal policy
- Uniquely strong evidence for Prong 1 (national importance)
- Cannot be dismissed as "insufficient" without explanation

A Federal Reserve citation is among the strongest possible evidence for NIW.

Getting Indexed in U.S. Commerce Research Library

What is the Commerce Research Library?

- Official library of the U.S. Department of Commerce
- Indexes journals through EBSCO Business Source Complete
- Your work becomes searchable by Commerce Department policymakers

Why this matters:

- Direct .gov indexing through EBSCO
- Accessible to U.S. trade and economic policymakers
- Demonstrates relevance to U.S. commercial and economic policy
- Verifiable by USCIS through search.library.doc.gov

EBSCO indexing through Commerce Library = .gov recognition for business research.

Demonstrating Workforce Impact Through Open Education

What to include in RFE response:

- Screenshots of course enrollments (online learning platforms)
- Number of students trained (quantifiable metric)
- Geographic distribution of students (nationwide reach)
- Free/open access courses (demonstrates public service)

Why this matters for Prong 1:

- Shows direct impact on U.S. workforce development
- Quantifiable metrics (e.g., "thousands of students trained")
- Demonstrates broader implications beyond employer
- Particularly valuable for retraining/upskilling endeavors

Open access education metrics are objective evidence of nationwide impact.

Why Use LaTeX for RFE Responses

LaTeX Advantages for Immigration Filings

Benefits:

- Professional formatting (law-firm quality)
- Automatic table of contents and cross-references
- Consistent exhibit numbering
- Easy to update and version control
- Handles 400+ page documents seamlessly
- Free (Overleaf, TeX Live)

What to template:

- RFE response briefs
- Covering letters addressing each deficiency
- Exhibit indexes and organization
- Expert opinion letters

Organizing Your RFE Response in LaTeX

- ➊ **Main file (`master_rfe.tex`):** `\input` for each section
- ➋ **Cover letter (`covering.tex`):** Executive summary addressing each RFE point
- ➌ **Response to each deficiency:** Separate section per RFE issue
- ➍ **Exhibits:** Organized as Exhibit A, B, C...
- ➎ **Expert letters:** Individual files `\input`
- ➏ **Evidence tables:** Publications, citations, peer reviews

Use `\includeonly` to test specific sections while compiling.

Using AI to Draft RFE Responses

Recommended AI Tools:

- **DeepSeek:** Best for legal reasoning and citation finding
- **ChatGPT:** Good for drafting and editing
- **Gemini:** Useful for summarization
- **Perplexity:** Great for finding supporting citations
- **Copilot:** Integration with LaTeX editors

Use multiple AI tools - each has different strengths.

AI Prompt Template for RFE Response

Sample Prompt for Prong 1 RFE

USCIS denied Prong 1 (national importance) of my EB2-NIW petition stating: COPY RFE TEXT

My proposed endeavor is: DESCRIBE ENDEAVOR My evidence includes: LIST EVIDENCE.
Draft a response arguing that:

1. The endeavor has broader implications beyond my employer 2. The officer applied an impermissibly heightened standard 3. My evidence demonstrates potential for nationwide impact
Cite Matter of Dhanasar and the USCIS Policy Manual.

Using AI to Draft Expert Letters for RFEs

AI prompt for expert letter:

Draft an expert opinion letter for Dr. NAME, PhD in FIELD, supporting an EB2-NIW petition.

The proposed endeavor is: DESCRIBE.

The RFE challenges Prong 1 (national importance).

The letter should: - State the expert's qualifications - Describe how they know the petitioner's work - Explain why the endeavor has national importance - Address the specific RFE concerns - Conclude that the petitioner meets Dhanasar standards

Always have experts review and sign AI-drafted letters.

NOID: Notice of Intent to Deny

What is a NOID?

Answer: A NOID is more serious than an RFE - USCIS intends to deny but gives you one last chance. **Key differences from RFE:**

- Shorter response window (30-33 days)
- Officer has already decided to deny unless you prove otherwise
- Requires stronger evidence and legal arguments
- Often involves legal errors, not just missing evidence

Treat a NOID as a near-denial. Respond aggressively with legal arguments.

How to Respond to a NOID

Step-by-step:

- 1 Identify the legal errors in the NOID (wrong standard, misapplied precedent)
- 2 Gather evidence directly addressing each error
- 3 Draft legal brief citing *Dhanasar*, Policy Manual, and case law
- 4 Include expert letters specifically rebutting the NOID's reasoning
- 5 Use same LaTeX template as RFE but with stronger legal arguments
- 6 Respond within 30 days (no extensions)

A well-crafted NOID response can lead to approval.

I-290B: Notice of Appeal or Motion

What is Form I-290B?

Answer: Form used to appeal a denial or file a motion to reopen/reconsider. **Options on I-290B:**

- **Appeal to AAO:** Review by Administrative Appeals Office (no new evidence)
- **Motion to Reopen (MTR):** New evidence not available at filing
- **Motion to Reconsider (MTC):** Legal error in original decision
- **Combined MTR/MTC:** Both new evidence and legal errors

Deadline: 30 days from denial date. No extensions.

Paralegal Review Template

Documents to Send to Paralegal for Review

What to include:

- Cover letter explaining the RFE or denial
- The USCIS RFE or denial notice
- Your draft response (LaTeX compiled PDF)
- Exhibit list and actual exhibits
- Expert opinion letters
- Timeline of your case

What to ask paralegal to check:

- Formatting and consistency
- Exhibit numbering and cross-references
- Spelling and grammar
- Compliance with USCIS formatting rules
- Completeness of response

Final RFE Response Checklist

Before Submitting Your RFE Response

- ☐ Each RFE deficiency addressed individually
- ☐ Legal arguments cite *Dhanasar* and Policy Manual
- ☐ Expert letters are specific (not generic)
- ☐ Exhibits organized with clear indexing
- ☐ Response submitted within deadline
- ☐ Proof of service attached (if required)
- ☐ Copy retained for your records
- ☐ Delivery tracking obtained
- ☐ Form I-140 missing sections (Part 4 & Part 6) completed
- ☐ Pre-filing work documented with timestamps
- ☐ .gov indexing evidence included
- ☐ Expert letters address all 3 prongs

Missing any RFE point or form field = automatic denial.

Common RFE Response Mistakes to Avoid

What NOT to Do

- ❶ **Responding late:** Even one day late = automatic denial
- ❷ **Missing an RFE point:** Address every single issue raised
- ❸ **Submitting same evidence:** Must add NEW evidence or arguments
- ❹ **Generic expert letters:** Must address specific RFE language
- ❺ **Poor organization:** Officer must find your response easily
- ❻ **Emotional language:** Stick to facts and law
- ❼ **Forgetting exhibits:** Evidence must support every claim
- ❽ **Incomplete Form I-140:** Missing Part 4 or Part 6 = rejection
- ❾ **Claiming post-filing achievements as new evidence** (Katigbak violation)

Organization is critical - make the officer's job easy.

RFE Response Timeline - Prepare Before You Get RFE

Strategic Timeline - Prepare Immediately After Filing

Do NOT wait for RFE. Prepare your evidence package immediately after filing.

Timeline	Action
Immediately after filing	Begin collecting evidence; identify experts; draft endeavor description
Day 1-7	Assume RFE may come any day; prepare template responses
Assume you received RFE	Assume you got prong and 2; assume identify each deficiency
Week 1-2	Gather new evidence; contact experts for letters
Week 2-3	Draft response using LaTeX template
Week 3-4	AI-assisted refinement; expert review
Week 4-5	Paralegal review; final formatting
Week 5-6	Submit response early (not on deadline day)

Do NOT wait

until the last day. Submit at least 1 week early.

Resources and Templates Included

What You Get in This Course

LaTeX Templates:

- Master RFE response template (50+ pages)
- Cover letter template
- Expert opinion letter (8 variations)
- Exhibit organization template
- Complete Form I-140 with all sections filled

AI Prompts:

- Prompts for DeepSeek, ChatGPT, Gemini, Perplexity
- Prompts for each prong and each RFE type

Checklists:

- RFE response checklist
- Expert letter checklist
- Form I-140 completion checklist
- Pre-filing evidence documentation checklist

Proactive Evidence Strategy - Add Before RFE Arrives

Why Add MTR Evidence to RFE Response Proactively

Key Principle: Do NOT wait for RFE to ask for evidence. Add it preemptively. **What to add (from MTR exhibits):**

- New indexing in major repositories (EconPapers, SSRN, RePEc)
- Federal Reserve FEDS Series citations (.gov)
- Harrisburg University Digital Commons indexing (.edu)
- Peer review certificates (Web of Science, ORCID)
- Professional recognitions and awards
- Udemy course enrollments (workforce impact)
- Media coverage (Impacto TIC, LLRX.com, podcasts)
- University library inclusions (Zuyd University LibGuides)

This is NOT post-filing new achievement - it is RECOGNITION of pre-existing work.

Positive Effects: Indexing in Major Repositories

EconPapers, RePEc, SSRN - Working Papers

Strategic Value:

- **EconPapers/RePEc:** Economics research repository used by Federal Reserve
- **SSRN:** Elsevier-owned preprint server; indexed by Commerce Library
- **MPRA:** Munich Personal RePEc Archive - preprints before formal publication

Why this matters for RFE:

- Preprints prove work was completed BEFORE filing date
- Submission timestamps defeat Katigbak arguments
- Working papers are "work in progress" not "new achievements"

These platforms show your research was already circulating before USCIS review.

Positive Effects: Federal Reserve FEDS Citation

Finance and Economics Discussion Series (FEDS) - .gov Citation

What this proves:

- Your research was cited by the U.S. Central Bank
- Federal Reserve economists found your work valuable
- Direct .gov domain evidence for Prong 1 (national importance)
- Cannot be dismissed without reasoned explanation

How to use in RFE response:

"Petitioner's research was cited in the Federal Reserve Board's official FEDS series (Exhibit [X]). This citation by the central bank of the United States is objective, third-party verification that Petitioner's work has national importance and influences federal policy."

A Federal Reserve citation is among the strongest possible NIW evidence.

Positive Effects: University Institutional Repositories

Harrisburg University Digital Commons - .edu Recognition

What this proves:

- U.S. university (.edu domain) has archived your research
- Work is preserved and accessible to students and faculty
- Shows academic recognition beyond employer

Zuyd University LibGuides (Netherlands):

- International academic recognition
- University librarians selected your work for curriculum guides
- Shows global impact for Prong 1

[.edu domain recognition is strong evidence of academic impact.](#)

Positive Effects: Peer Review Recognition

Web of Science (WoS) and ORCID Peer Review Credits

What this proves (from MTR exhibit):

- You have been invited to peer-review for scholarly journals
- Web of Science records review credits (verified)
- ORCID maintains permanent record of peer review activity
- Shows you are recognized as an expert in your field

How this helps RFE response:

- Counts as "judging the work of others" (EB1A criterion)
- Demonstrates professional recognition for EB2-NIW
- Third-party validation of your expertise

Peer review invitations prove you are considered an authority in your field.

Positive Effects: Professional Awards and Fellowships

Royal Fellow Member of IOASD (FRIOASD)

What this proves:

- Recognized for 10+ years of academic/research experience
- PhD-level contribution to education or social work
- International professional recognition

SAS Young Research Fellow (SYRFM):

- Recognized as emerging researcher under age 40
- Membership in Scholars Academic and Scientific Society
- Shows early-career excellence

Econometrics Innovative Research Award:

- Interdisciplinary contributions in econometrics and financial risk
- Third-party award recognition

Positive Effects: Open Access Education Metrics

Udemy Courses - Workforce Impact Evidence

What to include (from MTR exhibit):

- Screenshots of course enrollments
- Number of students trained (quantifiable metric)
- Geographic distribution (nationwide reach)
- Free/open access (demonstrates public service)

Why this matters for Prong 1:

- Shows direct impact on U.S. workforce development
- "Thousands of students trained" = quantifiable national impact
- Demonstrates broader implications beyond employer
- Particularly valuable for retraining/upskilling endeavors

Open access education metrics are objective evidence of nationwide impact.

Positive Effects: Media and Podcast Coverage

Media Recognition - Impacto TIC, LLRX.com, Reboot Society

Impacto TIC (Spanish-language tech publication):

- Article on AI hallucinations and enterprise risk
- Reaches professional audience in Latin America
- Shows international recognition

LLRX.com (Legal tech journal since 1996):

- Article on AI in finance and banking
- Audience includes lawyers, librarians, researchers
- Professional recognition in legal-tech space

Reboot Society Podcast:

- Discussion of AI leadership skills
- Forward-looking insights on human-AI collaboration
- Media recognition of expertise

Positive Effects: International Indexing Recognition

Index Copernicus (ICI) and Open Ukrainian Citation Index (OUCI)

Index Copernicus (ICI):

- Polish-based indexing platform
- Multi-criteria parametric evaluation of journals
- Index Copernicus Value (ICV) metric for journal quality
- Widely used in Poland and European countries

Open Ukrainian Citation Index (OUCI):

- Operated by State Scientific and Technical Library of Ukraine
- Under Ministry of Education and Science of Ukraine
- Government-managed repository - verifies publication authenticity
- Shows international governmental recognition

International government indexing = global recognition of research quality.

Academic Search Engines & Researcher Platforms

Google Scholar - Citation Tracking

Why this matters for RFE:

- Free search engine of scholarly literature across all disciplines
- Automatically tracks citation counts (cited by field)
- Creates public author profile with citation metrics
- Verifiable by USCIS through scholar.google.com
- Shows sustained impact over time (citation growth)

What to document:

- Total citation count (e.g., 500+ citations)
- h-index and i10-index metrics
- Citation growth trajectory over time
- Screenshots of Google Scholar profile

High citation counts demonstrate that your work is being used and recognized by other researchers.

Semantic Scholar (AI-Powered)

Why this matters:

- Developed by Allen Institute for AI (AI2)

ResearchGate & ORCID - Researcher Networks

ResearchGate (RG) - Professional Network for Scientists

Why this matters for RFE:

- Leading professional network for researchers (20+ million users)
- Tracks reads, citations, and research interest
- Shows international recognition (global researcher base)
- Provides RG Score (research impact metric)
- Peer endorsements and recommendations visible

What to document:

- RG Score and percentile ranking
- Number of reads and citations on platform
- International collaboration network
- Screenshots of ResearchGate profile
- Recommendations from other researchers

ResearchGate metrics prove your work is being read and cited globally.

ORCID (Open Researcher and Contributor ID)

Why this matters:

- Permanent digital identifier for researchers (16-digit code)

Cross-Platform Strategy - Maximizing Visibility

Why Multiple Platforms Matter Together

Platform	Primary Value for RFE
Google Scholar	Citation count & h-index
Semantic Scholar	AI-powered influence metrics
ResearchGate	Reads, RG Score, global reach
ORCID	Verified identity & peer review record
Web of Science (WoS)	Indexed journal citations
Scopus	International citation tracking

How to Present This Evidence in RFE Response

For Prong 1 (National Importance):

- High citation counts = broad impact across researchers
- International reads = global recognition
- Highly Influential Citations = impact on field development

For Prong 2 (Well-Positioned):

- ORCID verification = professional standing
- Peer review credits = recognized expert
- ResearchGate recommendations = peer validation

Key strategic argument:

Putting It All Together: RFE Response Integration

How to Structure Proactive Evidence in RFE Response

For Prong 1 (National Importance):

- Federal Reserve FEDS citation (.gov)
- Science.gov indexing
- ERIC indexing (Dept of Education)
- International indexing (ICI, OUCI)

For Prong 2 (Well-Positioned):

- Peer review credits (WoS, ORCID)
- Awards and fellowships
- University repository indexing (.edu)
- Working papers and preprints (pre-filing)

For Prong 3 (Balancing Test):

- Udemy enrollment metrics
- Media and podcast coverage
- Industry testimonials

Strategic Argument: This is NOT Post-Filing Achievement

Under Matter of Katigbak - Permissible Evidence

What USCIS may incorrectly argue:

"These recognitions happened after filing, so they are barred."

Your counter-argument:

"The indexing, citations, and awards are RECOGNITION of work that was already completed, submitted, and described in the original petition BEFORE the filing date. Under Matter of Katigbak, evidence that corroborates pre-existing facts is permissible. The work was already told. The indexing merely confirms its quality and impact."

Evidence to attach:

- Submission timestamps (email receipts, preprint dates)
- Draft manuscripts with version control history
- Original petition excerpts mentioning this work

This turns potential Katigbak objection into a winning argument.

Updated RFE Response Checklist with MTR Evidence

Before Submitting - Additional Items from MTR

- ☐ EconPapers/RePEc/SSRN working papers (with submission timestamps)
- ☐ Federal Reserve FEDS citation proof
- ☐ Harrisburg University Digital Commons indexing (.edu)
- ☐ Zuyd University LibGuides inclusion (.edu)
- ☐ Web of Science peer review credits
- ☐ ORCID peer review record
- ☐ Royal Fellow Member certificate (FRIOASD)
- ☐ SAS Young Research Fellow certificate
- ☐ Econometrics Innovative Research Award
- ☐ Udemy course enrollment screenshots
- ☐ Impacto TIC media coverage
- ☐ LLRX.com article
- ☐ Reboot Society podcast appearance
- ☐ Index Copernicus (ICI) indexing proof
- ☐ Open Ukrainian Citation Index (OUCI) indexing

Summary: Proactive RFE Response Strategy

Key Takeaways from MTR Integration

- **Add evidence BEFORE USCIS asks** - don't wait for RFE
- **Working papers with timestamps** defeat Katigbak arguments
- **Federal Reserve citation** = strongest possible Prong 1 evidence
- **.edu repository indexing** = academic recognition
- **Peer review credits** = expert recognition
- **Awards and fellowships** = professional recognition
- **Media coverage** = public recognition
- **International indexing** = global recognition

The same evidence that works for MTR works even better when added **PROACTIVELY** to RFE response before denial.

Multiple Indexing Platforms + Pre-Filing Work Strategy

Strategic Indexing: Getting Your Work Discovered

Why multiple indexing matters for RFE/NIW:

- Each platform indexes different databases and audiences
- Cross-indexing creates multiple .gov and .edu discovery pathways
- Verifiable by USCIS through independent platform searches
- Shows research is archived nationwide

Key Indexing Platforms for RFE Evidence

Platform	Indexing/Affiliation
OSF (osf.io)	Open Science Framework;
SciExplorer (scixplorer.org)	Harvard-NASA ADS integration; indexed in Science.gov
RePEc / EconPapers	Economics research; used by Federal Reserve FEDS
ERIC (eric.ed.gov)	U.S. Department of Education (.gov)
Harrisburg edu Dig Commons	Institutional repository (.edu)
MPRA (Munich Personal RePEc Archive)	Economics preprints; RePEc-indexed
SSRN (Elsevier)	Social science preprints; Commerce Library via EBSCO
HAL (French Open Archive)	International indexing; Google Scholar indexed
Regulations.gov	Policy commenting; PRA/ICR notice citations

Working Papers & Pending Publications - Pre-Filing Work

"The Work Was Already Told" - Pending Publications Strategy

What counts as pre-filing work (permissible under Katigbak):

- Working papers submitted BEFORE filing date
- Pending publications under review (submitted pre-filing)
- Preprints deposited on OSF, arXiv, SSRN before filing
- Conference submissions and acceptances before filing
- Research collaborations established before filing
- Data collection completed before filing

Documenting Pre-Filing Work for RFE Response

Evidence to submit:

- OSF preprint DOI with submission timestamp (before filing)
- Working paper on SSRN/RePEc/MPRA with submission date
- Email from journal confirming submission date (before filing)
- Draft manuscript with version history (Overleaf/GitHub timestamps)
- Expert letter confirming work was discussed before filing

These are **NOT** post-filing achievements - they are documentation of work **ALREADY IN PROGRESS**.

Key Takeaways

- **RFEs are fixable** - most deficiencies can be addressed with proper evidence
- **Missing form fields are fatal** - always double-check Form I-140 is complete
- **The 3 Prongs require specific evidence** - generic letters won't work
- **Pre-filing work matters** - document timestamps to defeat Katigbak arguments
- **.gov indexing is powerful evidence** - Federal Reserve, Science.gov, ERIC
- **Expert letters must address RFE language** - not generic recommendations
- **LaTeX creates professional responses** - law-firm quality matters
- **AI accelerates drafting** - but human review is essential
- **Prepare before RFE arrives** - don't wait to start gathering evidence

RFE Response Toolkit

- Understand the 3 Prongs of Dhanasar
- Complete ALL Form I-140 sections (Part 4 & Part 6)
- Use LaTeX for professional responses
- Leverage GenAI for drafting
- Expert letters that address specific RFEs
- Document pre-filing work with timestamps
- .gov indexing proves national importance
- Prepare before RFE - respond on time

Your RFE is not a denial - it's an opportunity. This presentation is for educational purposes only. Consult a qualified immigration attorney for legal advice specific to your case.